

HEADNOTE

“1. Unless otherwise provided, a case management decision or case management order of the judge-rapporteur or the presiding judge may not be appealed directly. The admissible legal remedy against such decisions and orders is an application for review by the panel in accordance with R.333.1 RoP. The panel decides on the admissibility of such an application. An appeal against the orders issued on the basis of this application is admissible under the requirements of R.220.2 and R.220.3 RoP.

2. The determination of the judge-rapporteur to deal with the Preliminary objection in the main proceedings is a case management decision that must be reviewed by the panel at the request of the defendant in accordance with R.333.1 RoP.

3. Allowing and rejecting a Preliminary objection may be reviewed under R.333.1 RoP if these are case management decisions or orders.

4. If a Preliminary objection is rejected, as an exception to the general principle, leave to appeal may be given by the judge-rapporteur and the order may be appealed against without prior panel review under R.333.1 RoP being required. If leave is granted, the unsuccessful party thus has the choice to either file an appeal or an application for review under R.333.1 RoP. If the judge-rapporteur did not grant leave to appeal, a party may apply for a panel review. The resulting panel decision may then subsequently be appealed if leave has been granted by the panel under R.220.2 RoP, or it may be subject to a request for discretionary review under R.220.3 RoP.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Appeal

PATENT
EP 3 611 989

Method and apparatus for transmitting
wireless local area network information

KEYWORDS

Setting out the grounds for leave to appeal ...

Appeals against decisions of the judge-rap...

Rule 333 Review of case management orders

SUMMARY

The Court of Appeal in Luxembourg has issued a decision on an appeal. The patent at issue relates to a method and apparatus for transmitting wireless local area network information. According to the headnotes of the decision, case management decisions and orders generally cannot be appealed directly, but instead must be reviewed by the panel upon request, with any subsequent appeal requiring satisfaction of the standard appellability requirements. The judge-rapporteur's decision to address a preliminary objection within the main proceedings is classified as a case management decision subject to panel review at a defendant's request. Decisions allowing or rejecting preliminary objections may be reviewed under the panel review procedure if they constitute case management decisions or orders. Where a preliminary objection is rejected, the judge-rapporteur may grant leave to appeal as an exception, allowing the unsuccessful party to choose between direct appeal or panel review, whereas if leave is denied, the party may seek panel review followed by either an appeal if the panel grants leave or a request for discretionary review.